Reconstructed exhibit: lease and later events

Authority to sign a winter lease

Reconstructed exercise document. Not an original case record.

Unofficial English reconstruction of a Swiss judgment in German

D04-P01

23 October 2013: the director negotiates a new lease of the same holiday apartment for 15 December 2013 to 15 March 2014. She intends to make it available to her employee for part of the winter season.

D04-P02

The returned lease bears a signature readable as the director’s name. It is accepted in the appeal that the employee made that signature. The covering letter is dated 20 November 2013. The evidence does not equate the covering-letter date with a separately established signing time.

D04-P03

29 November 2013: the director asks for cancellation and dismisses the employee. On 13 December 2013 the landlord sends an invoice. The director refers to her earlier cancellation and says that the employee signed and no longer works for her.

D04-P04

The landlord sought provisional enforcement of CHF 20,000. On 28 February 2014 the court allowed CHF 10,000 plus interest because the remaining CHF 10,000 was not yet due when enforcement began. The two amounts must not be merged into a finding that the full claim was already due.

Source: Bundesgericht 4A_421/2015, 2016-02-11